

The court takes judicial notice of the pleadings filed in this docket.

Cross-Complainant filed the Cross Complaint on 2/28/25. No proof of service on the Cross-Defendant was attached. The docket reflects that no proof of service of the Cross Complaint has ever been filed. The docket entry of 2/24/25, reflects that an attempt to file a Cross Complaint on 12/26/24, was rejected by the Office of the Court Clerk.

Cross-Defendant filed an Answer to the Cross Complaint on 10/31/25.

Analysis

California Rule of Court 3.110 governs the time for service and filings of initial pleadings. Cross-Defendants normally have no more than 30 days within which to respond to a Cross Complaint, otherwise they face the risk of default judgment.

However, this clock is triggered by service of process on the Cross-Defendant, as well as proof of that service. See *CCR 3.110*.

In the instant matter, Cross-Complainant provided, in his Motion, exhibits purporting to show that Cross-Defendant was served with process, none of these exhibits reflect the service of any documents occurring on or after 2/28/25. Thus, there is no evidence of the date on which the Cross Complaint was served, or that the clock for Cross-Defendant to file their Answer ever began.

Cross-Complainant has not met its burden to show that Cross-Defendant failed to file an Answer within 30 days of service of the Cross Complaint.

Disposition

Cross-Complainant's Motion to Strike and Request for Default Judgment are denied.

Cross-Defendant shall prepare and submit the order.

7. 9:00 AM CASE NUMBER: L24-06534

CASE NAME: CITIBANK N.A. VS. MARIA MOJICA

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY:

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion

and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant upon where service of process was effected, via substitute service. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,064.35, plus costs, less any credits for payments received.

The Defendant made payments of \$4,000.

Costs are \$603.61. A memo on costs was filed 12/9/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,667.96.

Plaintiff shall prepare and submit a proposed order and judgment.

8. 9:00 AM CASE NUMBER: L24-08890
CASE NAME: BANK OF AMERICA, N.A. VS. JED MANAYON
***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF**
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee